In the *Surya Narain* case[3] (1981), the Supreme Court held that the pleasure of the President is not justifiable. The governor has no security of tenure and no fixed term of office. He/she may be removed by the President at any time.

The Constitution does not lay down any grounds upon which a governor may be removed by the President. Hence, the National Front Government headed by V.P. Singh (1989) asked all the governors to resign as they were appointed by the Congress government. Eventually, some of the governors were replaced and some were allowed to continue. The same thing was repeated in 1991, when the Congress Government headed by P.V. Narasimha Rao changed fourteen governors appointed by the V.P. Singh and Chandra Sekhar governments.

The President may transfer a Governor appointed to one state to another state for the rest of the term. Further, a Governor whose term has expired may be reappointed in the same state or any other state.

A governor can hold office beyond his/her term of five years until his/her successor assumes charge. The underlying idea is that there must be a governor in the state and there cannot be an interregnum.

The President can make such provision as he/she thinks fit for the discharge of the functions of the governor in any contingency not provided for in the Constitution, for example, the death of a sitting governor. Thus, the chief justice of the concerned state high court may be appointed temporarily to discharge the functions of the governor of that state.

POWERS AND FUNCTIONS OF GOVERNOR

A governor possesses executive, legislative, financial and judicial powers more or less analogous to the President of India. However, he/she has no diplomatic, military or emergency powers like the President.



The powers and functions of the governor can be studied under the following heads:

1. Executive powers.
2. Legislative powers.
3. Financial powers.
4. Judicial powers.



Executive Powers

The executive powers and functions of the Governor are:

1. All executive actions of the government of a state are formally taken in his/her name.
2. He/she can make rules specifying the manner in which the Orders and other instruments made and executed in his/her name shall be authenticated.